

STATE OF NEW YORK

8096--A

2025-2026 Regular Sessions

IN SENATE

May 15, 2025

Introduced by Sens. HARCKHAM, ADDABBO, ASHBY, BORRELLO, BROUK, CANZONER-I-FITZPATRICK, CHAN, CLEARE, COMRIE, COONEY, FAHY, FERNANDEZ, GALLIVAN, GONZALEZ, HELMING, HINCHEY, JACKSON, KRUEGER, LANZA, LIU, MARTINEZ, MARTINS, MATTERA, MAY, MAYER, MURRAY, OBERACKER, PALUMBO, PARKER, RAMOS, RHOADS, RIVERA, ROLISON, C. RYAN, SALAZAR, SCARCELLA-SPANTON, SEPULVEDA, SERRANO, SKOUFIS, STAVISKY, STEC, TEDISCO, WEBB, WEBER, WEIK -- read twice and ordered printed, and when printed to be committed to the Committee on Civil Service and Pensions -- recommitted to the Committee on Civil Service and Pensions in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT prohibiting the diminution of retiree health benefits by a public employer

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

- 1 Section 1. On and after the effective date of this act, a public
2 employer shall be prohibited from diminishing the health insurance bene-
3 fits provided to retirees, who retired before, on or after the effective
4 date of this act, and their dependents or the contributions such employ-
5 er makes for such health insurance coverage below the level of such
6 benefits or contributions made on behalf of such retirees and their
7 dependents by such employer as of the retiree's date of retirement. For
8 the purpose of this act, "public employer" shall mean any professional
9 police and fire fighter in the state of New York.
- 10 § 2. Nothing contained in this act shall supersede or diminish the
11 terms of a collective bargaining agreement.
- 12 § 3. Notwithstanding the provisions of section one of this act to the
13 contrary, a public employer shall be prohibited from diminishing the
14 health insurance benefits provided to retirees who retire after the
15 effective date of this act from positions not subject to collective
16 bargaining agreement and their dependents, or contributions such employ-

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 er makes for such health insurance coverage, below the level of such
2 benefits or contributions made on behalf of active employees in such
3 positions as of the retiree's date of retirement.
4 § 4. Nothing contained in this act shall require a public employer
5 which does not provide health insurance benefits to retirees and their
6 dependents as of the effective date of this act to offer such benefits.
7 § 5. This act shall take effect January 1, 2027; provided, however, if
8 this act shall become a law after such date it shall take effect imme-
9 diately and shall be deemed to have been in full force and effect on and
10 after January 1, 2027.